

HOW COMMUNITIES CAN STOP DESTRUCTIVE DEVELOPMENT PROJECTS IN THE DOMINICAN REPUBLIC

Complete Community Opposition How-To

A practical guide for communities facing destructive development projects in the Dominican Republic, grounded in the environmental authorisation system under Law 64-00, the constitutional protection of collective and diffuse rights, and an amparo action that is free, informal and available to anyone

This guide uses the Dominican legal terms you will actually encounter (the licencia ambiental and the permiso ambiental, the DIA and the EIA, categories A, B, C and D, the Programa de Manejo y Adecuación Ambiental, the consulta pública, the acción de amparo and the amparo de cumplimiento, the Tribunal Superior Administrativo and the Tribunal Constitucional, and so on), each explained in plain language where it first comes up. The authorisation regulations have been consolidated and amended by ministerial resolution; the core mechanics below apply, but check the current compendium.

A note on terms. Important terms are shown in **bold** the first time they appear, with a plain-language explanation right where they come up. Spanish legal terms are given with a short English gloss.

A note on money. Budgets in this guide are in Dominican pesos (RD\$). Every figure is indicative — and this is a country where a community with almost no money can still reach a court, because the constitutional action is **free and not subject to formalities**.

A note on what makes this system unusual. Two provisions do most of the work here. First, the environmental study is, by statute, **a public document subject to discussion** — you are entitled to it. Second, the **amparo** may be brought to protect **collective and diffuse interests**, against public authorities **or private persons**, and expressly **to compel compliance with a law or an administrative act**. That last power matters: it lets a community sue the State for failing to enforce its own environmental decisions.

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INTRODUCTION & FRAMEWORK

Why This Matters

Community action changes project outcomes in the Dominican Republic, and the constitutional framework is unusually generous about who may act and what they may act for. **Article 66** recognises **collective and diffuse rights and interests**, protecting the conservation of ecological balance, fauna and flora, the protection of the environment, and the preservation of cultural, historical and archaeological patrimony. **Article 67** makes it the State's duty to **prevent contamination and to protect and maintain the environment for present and future generations**, and gives

every person the right — **individually and collectively** — to the sustainable use of natural resources and to **live in a healthy environment, ecologically balanced and adequate for the development and preservation of the different forms of life, the landscape and nature.**

The remedy attached to those rights is remarkable. The **acción de amparo** may be brought by any person **or by someone acting in their name**, lies against **any public authority or private person** for action or omission, may be used **to make effective the compliance with a law or an administrative act**, and exists expressly **to guarantee collective and diffuse rights and interests** — by a procedure that is **preferential, summary, oral, public, free and not subject to formalities**. A community can therefore go to court at no cost not only against a developer but against the environment ministry itself for failing to enforce, and Dominican courts have entertained exactly that, ordering action inside a national park and referring a minister's conduct to the public prosecutor.

Beneath the Constitution sits **Law 64-00**, which declares that natural resources and the environment are the **common patrimony of the nation** and that its provisions are of **public order**. No project capable of significantly affecting the environment may be executed without an environmental authorisation: a **Licencia Ambiental** for **Category A** projects with high potential impacts — including those located **in or near environmentally sensitive areas** — supported by a full **Estudio de Impacto Ambiental**; a **Permiso Ambiental** for **Category B** projects with moderate, well-known impacts, supported by a **Declaración de Impacto Ambiental**; and lighter instruments for lower categories. Critically, the statute says the study **"shall be a public document, subject to discussion"**. The Ministry must consult the study with the competent sectoral bodies **and with the municipalities**, results of the **public consultation** are annexed to the technical review report, and participants' opinions are to be considered in the technical recommendations. Every authorisation carries a **Programa de Manejo y Adecuación Ambiental**, and beginning works without a permit or licence is sanctionable, with civil and criminal liability besides.

The honest counterweight is institutional. Constitutional protection exists, but its effectiveness is, as Dominican commentary puts it, still under construction: brave decisions whose impact is limited by institutional weakness. There is **no specialised environmental jurisdiction**; the **specialised environmental prosecutor** faces serious operational restrictions; several laws — on water, climate, and creating particular protected areas — have been repeatedly postponed; and pressure from tourism, urban development, mining and aggregates on coasts, rivers and mountains is relentless.

What "winning" realistically means. Rarely a project cancelled outright. More often: an authorisation **refused, conditioned or annulled**; a project forced from the lighter route onto a full **EIA**; the study released and genuinely discussed; a **public consultation** actually held and its opinions recorded; works **halted for operating without authorisation**; an **amparo** compelling the Ministry to enforce its own decisions or to act inside a protected area; or a **management programme** enforced with real monitoring. The realistic goal is to use two things the law already gives you — the public document and the free, informal amparo — precisely and early.

The Strategic Framework

Five steps that reinforce each other:

1. **Target identification** — establish the category, the instrument, and whether authorisation exists at all.
2. **Documentation** — build a record strong enough for the Ministry, the prosecutor and the courts.
3. **Local opposition** — organise so the consultation is filled and named people can act.
4. **Legal challenges** — the authorisation, the consultation, the prosecutor, and above all the **amparo**.
5. **Media strategy** — coverage that raises the political cost and reaches technical allies.

No single step wins alone. Here the combination that works is **the public study plus a well-framed amparo for collective and diffuse interests**.

Critical Caveat: A Tilted System Can Make Opposition Harder (But Doesn't Make It Impossible)

The Dominican tilt is institutional: strong rights, weaker enforcement. Assessing that honestly helps you choose the right tools: the strongest routes are **demanding the study as the public document the law says it is, contesting the category**, insisting on a real **consulta pública**, reporting **works begun without authorisation**, and filing an **amparo** — including an amparo to compel the authorities to enforce. Section 13 deals honestly with tilted situations.

How to use this guide

Read Sections 1–3 once, and Section 8 early, because the amparo shapes everything. Work Section 4 immediately if a project has appeared. Sections 5–7 run in parallel. Sections 9–11 are reference material. Section 12 pulls it onto one

timeline; Section 13 helps you judge how far to take it.

HOW THE SYSTEM WORKS

Before you can fight a project you have to know who decides it, how, and the words the system uses. The Dominican Republic is a unitary republic with **provinces, municipios** governed by elected **ayuntamientos**, and **distritos municipales**. Environmental regulation rests on the **Ley General sobre Medio Ambiente y Recursos Naturales, No. 64-00**, and on the compendium of regulations and procedures for environmental authorisations issued by ministerial resolution.

The bodies that decide — and what each one controls

The Ministry of Environment and Natural Resources. The governing body: it formulates national environmental policy, administers the State's natural resources, oversees compliance, and **grants the environmental permits and licences**. It administers the impact evaluation process, sets the criteria determining which instrument a project needs and the **exclusion criteria**, and carries out **periodic inspections and audits**.

The ayuntamiento (municipality). More than a bystander: the law requires studies to be **consulted with the competent sectoral bodies and with the municipalities**, and the municipality separately controls local land use and construction permission.

The sectoral institutions. Energy and mines, public works, tourism and water authorities issue the underlying concessions, and are among the bodies consulted.

The specialised environmental prosecutor. A dedicated office for the defence of the environment and natural resources, able to pursue offences under Law 64-00 — including operating without the required authorisation. A genuine route, though under serious resource constraints.

The Tribunal Superior Administrativo. Hears amparo actions in administrative matters and reviews the legality of administrative acts, including environmental authorisations.

The Tribunal Constitucional. Reviews amparo judgments on constitutional revision and decides actions of unconstitutionality; it has affirmed the need to protect the environment **in the broadest terms** under Articles 66 and 67.

Which one is "yours"? Ask: which **category** — A, B, C or D — and therefore which instrument: **Licencia Ambiental with an EIA, Permiso Ambiental with a DIA**, or something lighter? Is the site **in or near an environmentally sensitive area** or a protected area? Which **ayuntamiento** must be consulted and must grant construction permission? Has any authorisation issued at all? Pinning this down is Step 1.

How a decision is actually made — the journey of a project

Under Law 64-00 and the authorisation compendium the path is roughly:

1. **Does the project need authorisation?** No work, project or activity capable of significantly affecting the environment may be executed without a **Permiso** or **Licencia Ambiental**. The categories expressly cover ports, dams, roads and airports; power plants and high-voltage transmission; **urban and tourism development**; industrial plants, agro-industry and **mining**; **sand and gravel extraction**; and **any project inside a protected area**. The Ministry also publishes **exclusion criteria** for activities outside the process.
2. **Classification.** **Category A** covers projects that may produce adverse environmental impacts, whether by their own characteristics **or because they are located in or near environmentally sensitive areas** — these require a full **Estudio de Impacto Ambiental** and result in a **Licencia Ambiental**. **Category B** covers projects whose impacts are well known or moderate and can be eliminated or minimised through mitigation, prevention or compensation measures — these require a **Declaración de Impacto Ambiental** and result in a **Permiso Ambiental**. Lower categories attract lighter instruments, including a minimum-impact certificate. **The category decides how much scrutiny and how much public process follows**, which makes contesting it the most consequential early move.
3. **Who prepares it, and who pays.** The study is **paid for by the promoter** and prepared by a technical, multidisciplinary team whose members must be **registered and certified** with the Ministry. Their registration is checkable.
4. **The public document rule.** The declaration, the study and the environmental report **shall be a public document, subject to discussion**. This is the single most useful sentence in Dominican environmental law for a community: you are not asking a favour when you request the study.

5. **Consultation.** The Ministry administers the process **in coordination with the corresponding institutions**, which are **obliged to consult the environmental impact studies with the competent sectoral bodies and with the municipalities**. Where a **public consultation** is held, its results are **annexed to the technical review report**, and the **opinions of participants are considered** in formulating the technical recommendations.
6. **Decision and management programme.** The Ministry grants or refuses the authorisation. Every permit and licence must include a **Programa de Manejo y Adecuación Ambiental**, which the promoter must execute and which establishes how compliance will be followed up.
7. **Enforcement.** The Ministry conducts **periodic inspections and audits**. Projects that **begin construction, installation or operation without the corresponding permit or licence** are sanctioned, **without prejudice to civil or criminal liability** — and Law 64-00 contains criminal provisions that the specialised prosecutor can pursue.

The rulebook — the policies that decide the outcome

- **Law 64-00.** Was an authorisation required and obtained **before** works began? Was the correct **category** applied? Was the study made available as the **public document** the law declares it to be? Were the sectoral bodies and the **municipality** consulted? Is the **management programme** being executed?
- **The Constitution. Article 66** on collective and diffuse rights; **Article 67** on the State's duty to prevent contamination and protect the environment for present and future generations, and the individual and collective right to a healthy, ecologically balanced environment; and the **amparo**, free, informal, and available for collective and diffuse interests and to compel compliance with a law or administrative act.
- **Protected-area and sectoral law.** Projects inside protected areas require authorisation, and protected-area legislation adds its own prohibitions; mining, tourism, water and coastal rules add further permits.

Follow the money — why the system often leans toward "yes"

Understanding the pressures is targeting, not cynicism. The Dominican economy leans heavily on tourism, construction, mining and aggregates, much of it concentrated on coasts, rivers and mountain slopes; the studies are commissioned and paid for by promoters, albeit by registered professionals; the Ministry both promotes and regulates in a context of intense investment demand; and the institutions meant to enforce — particularly the specialised prosecutor — are under-resourced. None of this is unlawful, but it explains the lean, and why the free constitutional remedy carries so much weight here.

The overseers — who watches the decision-makers

- **The Tribunal Superior Administrativo** — amparo in administrative matters and review of administrative acts.
- **The Tribunal Constitucional** — constitutional revision of amparo judgments, and the source of the "broadest terms" reasoning on environmental protection.
- **The specialised environmental prosecutor** — criminal enforcement of Law 64-00.
- **The Cámara de Cuentas and Defensor del Pueblo** — public funds and administrative conduct.
- **The ayuntamiento** — consultation, land use and construction permission.
- **Universities, professional associations and environmental organisations** — an active civil society with a record of sustained campaigns over mountains, rivers and coasts.

Naming and using the right body matters: here the most consequential early judgment is usually **whether the project has any authorisation at all, and whether the study has been made public as the law requires**.

QUICK REFERENCE: SUCCESS RATES

These figures are **directional, not guarantees** — patterns across documented Dominican and comparable campaigns, not a controlled study. Use them to prioritise effort. The most important lesson here: the country pairs **strong rights and a free remedy** with **weak enforcement institutions**, so the highest-yield strategy is usually to use the courts to make the administration do what it is already supposed to do.

Individual Step Success Rates

Approach	Success Rate	Timeline	Cost (RD\$)	What "Success" Means
Documentation only	5-10%	1-3	low	Basis for every other step

		months		
Local opposition only	20-35%	6-24 months	low	Municipal and political pressure
Demanding the study as a public document	35-55%	weeks	minimal	The file in hand; the case becomes possible
Challenging the category	25-45%	1-6 months	low	Full EIA and Licencia required
Participation in the consulta pública	20-35%	1-3 months	low	Opinions annexed and considered
Complaint of works without authorisation	30-50%	1-12 months	low	Suspension; sanctions; prosecution
Complaint to the environmental prosecutor	20-40%	6-24 months	none	Criminal investigation; deterrence
Amparo — collective and diffuse interests	35-55%	2-10 months	none	Works suspended; authorisation annulled
Amparo de cumplimiento (compel enforcement)	30-50%	3-12 months	none	Ministry ordered to enforce its own decisions
Annulment before the administrative court	25-45%	12-36 months	moderate	Authorisation annulled
All steps combined	50-65%	9-30 months	low-moderate	Authorisation refused, annulled or conditioned; works halted; enforcement compelled

Key insight: all steps together are far more effective than any single one — and the Dominican multipliers are two. The first is the **public document rule**: the law itself declares the study "a public document, subject to discussion", so a community should almost never be arguing blind. The second is the **breadth of the amparo**: free, informal, available for **collective and diffuse interests**, against **public bodies or private persons**, and usable **to compel compliance with a law or administrative act** — which turns the State's own inaction into something a court can order fixed. The distinctive disadvantage is that rights outrun institutions: there is no specialised environmental jurisdiction, the environmental prosecutor is under-resourced, and several protective laws remain unpassed.

A note on cost: the amparo is free and not subject to formalities; complaints to the Ministry and the environmental prosecutor cost nothing; requesting the study is a legal entitlement. The expenditure that changes outcomes is independent technical evidence — hydrology, coastal processes, forest cover — and, if you go to the administrative jurisdiction for annulment, counsel.

Effectiveness Visualization

SUCCESS PROBABILITY (authorisation refused, annulled or conditioned; works halted; enforcement compelled)

FAVOURABLE SCENARIO (no authorisation or wrong category, sensitive area or protected area affected, study obtained):

All steps combined: 50-65%
Amparo (collective): 35-55%
Works-without-permit: 30-50%
Single step: 5-55%

TILTED SCENARIO (authorisation granted with full EIA, powerful tourism or mining promoter, works advanced):

All steps combined: 30-45%
Amparo de cumplimiento: 25-40%
Local + municipal: 20-35%
Single step: 3-15%

How to read this honestly. The strongest facts here are: **works begun with no permit or licence at all**, which the law sanctions and which carries civil and criminal liability; a project placed in a **lower category** although it sits **in or near an environmentally sensitive area**, which by the classification's own terms belongs in Category A with a full study; a **study withheld** despite being declared a public document; a **consultation** never held, or held without the opinions being annexed and considered; and **management-programme commitments** unperformed while the Ministry does not inspect. That last one is where the **amparo de cumplimiento** is unusually valuable: rather than arguing the merits, you ask a court to order the authorities to apply the decision they have already made. What is harder is defeating a project that obtained a full EIA, a genuine consultation and a licence — there the realistic gains are conditions, monitoring and enforcement.

Step Importance Ranking (When All Combined)

1. **Legal challenges** — the amparo, in both its forms, is free and unusually broad.
2. **Documentation** — including the study you are entitled to demand.
3. **Local opposition** — supplying named claimants, consultation turnout and municipal pressure.
4. **The administrative route** — category challenge, consultation, complaints of unauthorised works.
5. **Media** — which reaches technical allies and makes a quiet authorisation visible.

Winning Dominican campaigns combined the public study, a precise constitutional framing around collective and diffuse rights, municipal engagement, and persistence about enforcement after any decision.

What Dominican Campaigns Actually Show

A few patterns recur. **The Constitution is expansive** — Article 66 protects **collective and diffuse rights**; Article 67 makes it the State's duty to **prevent contamination and protect the environment for present and future generations** and gives everyone the right, individually and collectively, to a **healthy, ecologically balanced environment**; and the Constitutional Court has said the environment must be protected **in the broadest terms**. **The amparo is genuinely powerful** — free, informal, oral, preferential, available against public authorities **and private persons**, for **collective and diffuse interests**, and expressly **to make effective compliance with a law or an administrative act**. It has been used against the environment ministry itself over conditions inside a national park, with the court also asked to direct the prosecutor to investigate a minister under Law 64-00's criminal provisions. **The study belongs to the public** — the statute states plainly that it **is a public document, subject to discussion**, and requires consultation with sectoral bodies and **municipalities**, with public consultation results **annexed** and participants' opinions **considered**. **But enforcement is the weak point** — commentary describes constitutional environmental protection as real but "still under construction", notes the absence of a **specialised environmental jurisdiction**, and records that the **environmental prosecutor** faces serious operational restrictions, while laws creating particular protected areas remain postponed. The through-line: **demand the document, frame the right collectively, and use the courts to compel the enforcement the institutions struggle to deliver**.

STEP 1: TARGET IDENTIFICATION

You cannot fight what you have not precisely identified. Answer five questions, and write the answers in a shared document — this becomes the campaign's factual spine.

Core Questions You Must Answer

Question 1: What Exactly Will Be Destroyed?

Get the specifics: exact location and extent, project type and stage, and what is there now — **rivers, arroyos and springs, aquifer recharge, beaches, dunes, mangrove and reef, forest and mountain slope, farmland, and homes**. Obtain the **DIA or EIA** and list every admitted impact with its page reference. Pay particular attention to **water** and to **coastal and river systems**, and to whether the site lies **in or near a protected or environmentally sensitive area** — a fact that by itself pushes a project into the highest category.

Question 2: Who Has Decision-Making Power?

Identify precisely: (a) the **category** — A, B, C or D — and the instrument: **Licencia with EIA, Permiso with DIA**, or lighter; (b) whether an authorisation **exists at all**, and its date; (c) which **ayuntamiento** must be consulted and must grant construction permission; (d) which **sectoral institution** grants the underlying concession; and (e) whether the site is inside or adjacent to a **protected area**.

Question 3: What Specific Action Stops It?

A project can be stopped or reshaped at several points: the **category raised** so a full EIA and licence are required; the authorisation **refused, conditioned or annulled**; works **suspended for operating without authorisation**, with sanctions and possible prosecution; an **amparo** protecting collective and diffuse interests; an **amparo de cumplimiento** compelling the Ministry to enforce its own decisions; or the **management programme** enforced after approval. Map them and pursue at least two.

Question 4: When Is the Decision Final?

Diarise: the **consulta pública**, if one is convened, and the window for submitting opinions that must be annexed and considered; the **authorisation decision**; and, for annulment before the administrative jurisdiction, the applicable period — which is limited, so take advice promptly. The **amparo** is designed for immediacy and has its own short framework, so where harm is imminent or ongoing, file rather than wait. Where works have already begun without authorisation, that is actionable **now**.

Question 5: Are There Documented Financial Interests or Systemic Pressures?

Map, factually and carefully: the promoter and any foreign investor; whether the project depends on a tourism, mining or aggregates concession; whether it sits on state land or inside a protected area; and its economic weight locally. Use public sources — the Ministry's authorisation records, the official gazette, municipal files and the companies registry. Build a dated, sourced timeline.

Output of Step 1: a one-page fact sheet with the project's description, its category and instrument, whether an authorisation exists, the protected-area position, the municipality's role, every deadline, and the money map.

Worked example: which lever is actually open

Suppose earthworks and clearing begin on a hillside above a river, close to the boundary of a protected area, with no notice to the community and no visible process. Working the questions: **Q1** — you record the river, the springs, the forest and the slope, dated. **Q2** — you ask the Ministry, in writing, whether the project holds a **Permiso or Licencia Ambiental**, in what **category**, and on what date; and you establish the protected-area position. Three answers open three doors: **no authorisation at all**, in which case works begun without a permit or licence are sanctionable and expose the promoter to civil and criminal liability; **a Permiso in Category B**, although the site's proximity to a sensitive area points to **Category A** with a full **EIA**; or a **Licencia** properly granted, in which case you turn to the study, the consultation and the management programme. **Q3** — the live levers are the demand for the **public document**, a **category challenge**, a complaint of **unauthorised works**, and an **amparo** framed on **collective and diffuse rights** with a request to suspend. **Q4** — you act now, because the amparo is free and the clearing is irreversible. **Q5** — the registry and gazette show the promoter. In an afternoon you know that **the authorisation question is the campaign, and the amparo is the instrument**.

STEP 2: DOCUMENTATION

Documentation in the Dominican Republic begins from an unusually strong position: the law itself declares that the declaration, the study and the environmental report **shall be a public document, subject to discussion**. That single provision means your first task is not to beg for information but to **claim it** — and a refusal to hand over a document the statute calls public is itself a serious fact, and one an amparo can address quickly.

The Three Documentation Layers

LAYER 1: BASELINE CONDITIONS DOCUMENTATION

Prove what exists **before** the works.

Water first. Document rivers, arroyos, springs, wells and aquifer recharge: location, flow, quality and use, and the households, farms and aqueducts depending on them. Photograph from **fixed points**, dated, monthly. Water is the issue around which Dominican communities most often mobilise and win.

The legal character of the site. Establish precisely whether the land is **inside or near a protected area** or an environmentally sensitive area, since that status is what pushes a project into the highest category with a full study. Obtain the protected-area boundary documentation.

Coast, forest and slope. Document beaches, dunes, mangrove, reef, forest cover, gradients and erosion risk — dated and located.

Homes, farms and livelihoods. Document dwellings and their distance from the works, farms, fishing and tourism enterprises, and the households affected.

How to hold it. Keep everything dated, located and backed up, held collectively rather than by one person.

LAYER 2: AUTHORISATION AND PROCESS ANALYSIS

Show what the project would do and whether it is lawfully authorised. Catalogue four things:

1. **Does an authorisation exist, and which one?** Ask the Ministry in writing whether the project holds a **Permiso** or **Licencia Ambiental**, in what **category**, and on what date. **Works begun without either are unlawful**, sanctionable, and expose the promoter to civil and criminal liability — the cleanest fact available.
2. **Is the category right?** A project belongs in **Category A**, with a full **EIA** and a **Licencia**, where it may produce adverse impacts **by its characteristics or by being located in or near environmentally sensitive areas**. A substantial or sensitively-sited project processed on a **DIA** has escaped the fuller study, and that is squarely arguable.
3. **The study and the consultation.** Obtain the **DIA or EIA** — the public document — and mine it for admitted impacts with page references and for omissions: downstream users, cumulative effects with other projects, coastal processes, alternatives. Then examine the process: were the **sectoral bodies and the municipality consulted**? Was a **public consultation** held, were its results **annexed to the technical review report**, and were participants' **opinions considered**?
4. **The management programme and compliance.** Where an authorisation exists, obtain the **Programa de Manejo y Adecuación Ambiental** and check performance against each commitment, together with whether the Ministry has carried out the **periodic inspections and audits** the rules contemplate. Non-performance plus non-inspection is precisely the situation an **amparo de cumplimiento** addresses.

Get expert eyes on it. A signed technical opinion carries far more weight before the Ministry and the courts. Universities, professional associations and environmental organisations are realistic sources; for river, aquifer and coastal questions an independent assessment is what converts local conviction into a fact a judge can act on.

LAYER 3: HEALTH & ECONOMIC IMPACT DOCUMENTATION

Translate harm into human terms — which, under Articles 66 and 67, is the constitutional argument:

- **Water and health** — households and aqueducts affected, alternatives, contamination risk, dust and noise.
- **Livelihoods** — farming, fishing and tourism enterprises at risk, quantified per household where possible, set against the project's claimed employment.
- **Collective and diffuse interests** — say explicitly what is at stake for the wider community and for future generations: the ecological balance, the landscape, the protected area, the river system. This is not rhetoric here; it is the constitutional category the amparo protects.
- **Irreversibility** — name plainly what cannot be undone.

Package this layer twice: a rigorous version in **Spanish** for the Ministry, the prosecutor and the courts, and a short version — the essential facts and the constitutional point — because the amparo is a summary, oral procedure that rewards clarity.

How to Structure Your Documentation

- **Phase 1: Baseline and status (Weeks 1-3)** — water, protected-area position, fixed-point photographs.
- **Phase 2: The authorisation (Weeks 1-4)** — written request to the Ministry; establish whether any permit or licence exists and in what category.
- **Phase 3: The study and the process (Months 1-2)** — obtain the public document; examine consultation and municipal involvement.
- **Phase 4: Compliance (ongoing)** — the management programme, inspections, and non-performance.

Common Documentation Pitfalls (What Fails)

- **Asking politely instead of claiming the right** — the study is a public document by statute; say so in the request.
- **Not establishing whether any authorisation exists** — unauthorised works are the strongest and simplest ground.
- **Accepting the category** — sensitive siting alone can require Category A.
- **Ignoring the consultation record** — opinions must be annexed and considered, and their absence is arguable.
- **Framing only individual harm** — the Constitution protects **collective and diffuse interests**; plead them.
- **Stopping at approval** — the management programme and the inspection duty are where the amparo de cumplimiento bites.

Documentation Budget Breakdown (RD\$)

Item	Low (volunteer/pro-bono)	Higher (commissioned)
Fixed-point photography, GPS	minimal	modest
Copies of the study and authorisation	modest	modest
Water or coastal sampling	modest	moderate
Technical/academic opinion	often free	moderate
Amparo filing	none	none
Counsel for administrative annulment	modest	moderate

Most of this is inexpensive. Spend where it counts: an **independent technical opinion**, because the free remedy needs evidence more than it needs advocacy.

WHAT TO GATHER, AND WHERE TO FIND IT

Much of what decides a Dominican case is documentary, and one key document is public by law.

The Ministry of Environment. Whether a **Permiso** or **Licencia Ambiental** exists, in which **category** and on what date; the **DIA or EIA** — the public document; the **technical review report** and the annexed results of any **public consultation**; the authorisation with its conditions; the **Programa de Manejo y Adecuación Ambiental**; and inspection and audit records.

The ayuntamiento. Whether the municipality was consulted on the study as the law requires, its response, council resolutions, land-use provisions and construction permission.

Protected-area documentation. Boundaries and management instruments for any protected area in or near the site — the status that can determine the project's category.

Sectoral institutions. The tourism, mining, aggregates or water concession and its dates.

The environmental prosecutor. Where works began without authorisation or damage occurred, a complaint to the specialised office is free and creates a record, even where capacity limits what follows.

Companies and gazette. The registry for the promoter and its investors; the gazette for decrees, resolutions and protected-area instruments.

How to force a document open. Rely first on Law 64-00's own words: the declaration, study and environmental report **shall be a public document, subject to discussion**. Put the request in writing, cite that provision, and keep proof. If it is refused or ignored, the **amparo** — free, informal, and available to compel compliance with a law — is well suited to obtaining it, and obtaining it is often the step that makes the whole case possible.

Free and low-cost help. Universities, professional associations, environmental organisations and aqueduct associations are realistic allies. Because the amparo requires no formalities and no fee, the constraint is usually **technical evidence** — approach a university department early.

Tie it to the map. The dots and layers here are your starting index — a mapped project points you to the Ministry and the sectoral concession, and the local-ally entries point you to organisations and academics already working nearby.

STEP 3: BUILDING LOCAL OPPOSITION

Critical Insight About Organizing

In the Dominican Republic, organising serves a constitutional purpose. The rights at stake are expressly **collective and diffuse** — the ecological balance, the environment itself, the landscape, the patrimony — and the amparo exists precisely to guarantee them. So a campaign here is not merely gathering complainants with individual grievances; it is constituting the **community whose collective interest the Constitution protects**, and doing so visibly enough that a court and a

ministry can see it. A neighbourhood association, an aqueduct committee, a fishers' association and a municipal council speaking together are not just political weight; they are the shape of the constitutional claim.

Three principles carry special weight here: **claim the document early** (the study is public by statute, and having it changes every conversation); **plead collectively** (frame the harm as one to the community, the river system and future generations, because that is the constitutional category); and **do not stop at the decision** (the distinctive Dominican remedy is compelling the authorities to enforce what they already decided).

PHASE 1: FOUNDATION (Weeks 1-4)

Step 1a: Start with the most affected — and write to the Ministry. Reach the households whose water, land, fishing or homes are at stake, and in the same week send a written request asking whether the project holds a **Permiso or Licencia Ambiental**, in what category, and for a copy of the **study as the public document the law declares it to be**. Begin fixed-point photographs.

Step 1b: Affinity groups by concern. Let people join through water, river, beach, forest, farming, fishing or tourism livelihoods. Where a **community aqueduct association** exists, engage it at once — it is both an affected institution and a keeper of water records.

Step 1c: Constitute the collective voice. Bring together the neighbourhood associations, the aqueduct committee, farming and fishing associations, and where possible obtain a position from the **ayuntamiento** — which the law says must be consulted on the study in any event.

PHASE 2: PUBLIC LAUNCH (Weeks 4-10)

Step 2a: Community assembly. Inform, decide collectively, and identify who will act. Explain that the **amparo is free, informal and can be brought by someone acting on others' behalf** — most people do not know this.

Step 2b: If the study is withheld, act. A refusal to produce a document the statute calls public is a strong, quick claim — and the document is what the substantive case needs (Section 8B).

Step 2c: Use the consultation. Where a **consulta pública** is convened, turn out, submit written opinions, and keep proof — the results must be **annexed to the technical review report** and the opinions **considered**. Where no consultation is held for a project of real significance, record that in writing.

Step 2d: Report unauthorised works immediately. If clearing or construction has begun without a permit or licence, report it to the Ministry and to the **environmental prosecutor** the same week (Sections 8D and 8E).

Step 2e: Media at launch. Time coverage to the request, the consultation or the report of unauthorised works.

PHASE 3: COALITION EXPANSION (Months 2-6)

Step 3a: Broaden the alliance. Bring in downstream and coastal communities, neighbouring municipios, the **municipal council**, aqueduct and irrigation associations, tourism and fishing operators dependent on the same resource, universities, professional associations and national organisations.

Step 3b: Coalition agreements. Agree who acts in the amparo, who holds the documents, who speaks publicly, and how decisions are taken. Because the amparo may be brought by someone acting in another's name and for collective interests, agree explicitly who carries that mandate.

Step 3c: Commission the technical opinion. Get the water, coastal or forest evidence signed and dated. In a free-remedy system, this is the input that most determines success.

PHASE 4: SUSTAINED PRESSURE (Months 3-12)

Step 4a: File the amparo. Frame it on **Articles 66 and 67** — collective and diffuse rights, the State's duty to prevent contamination and protect the environment for **present and future generations**, and the right to a healthy, ecologically balanced environment — and ask for suspension where works advance (Section 8C).

Step 4b: Use the amparo de cumplimiento. Where an authorisation exists but its **management programme** is not being executed and the Ministry is not inspecting, ask the court to **compel compliance with the law and the administrative act**. This is the distinctive Dominican remedy and it is under-used.

Step 4c: Keep the prosecutor engaged. Where works proceeded without authorisation or damage occurred, maintain

the complaint with the specialised environmental prosecutor, recognising its capacity constraints but valuing the record and the deterrent.

Step 4d: Public actions. Assemblies, marches, vigils and press conferences are common and lawful. Keep them peaceful and orderly, coordinate where required, and remember the sharper instrument here is the free constitutional action — public action works best supporting a filed case.

Worked example: a community that unlocks the strong levers

A riverside community sees machinery clearing on a slope upstream, near the edge of a protected area. Anger rises and a road blockade is proposed. What converts the anger into force happens differently. First, three residents write to the **Ministry** asking whether the project holds a **Permiso or Licencia**, in what **category**, and requesting the **study as the public document the law declares it to be** — and the answer, or the silence, defines the case. Second, when the study is not produced, they file a short **amparo**, free and without formalities, to obtain it. Third, the **aqueduct association** supplies years of records on the river's flow and quality, and a **university hydrologist** signs a brief opinion. Fourth, having established that the site sits **near a protected area** but was processed on a **DIA**, they challenge the **category** in writing, arguing it belongs in **Category A** with a full **EIA**. Fifth, they file the substantive **amparo** on **collective and diffuse rights** and the State's duty to protect the environment for **present and future generations**, asking for suspension — and, in parallel, report the **unauthorised clearing** to the Ministry and the **environmental prosecutor**. Later, when a licence is granted with a **management programme** that nobody executes and nobody inspects, they return with an **amparo de cumplimiento** to compel enforcement. The lesson generalises: **here the written request in week one and the collective framing in month two are what make a free remedy decisive — and the enforcement action is what makes it last.**

Opposition Building Budget: Year-Long Campaign (RD\$)

Low. The recurring costs are transport, printing, communications and copies. The **amparo is free** and complaints to the Ministry and the prosecutor cost nothing. The expenditure worth prioritising is an **independent technical opinion** on water, coast or forest, and — if you pursue annulment before the administrative jurisdiction — counsel. Keep transparent, collective accounts, and note that the practical constraint here is usually **evidence and persistence**, not money.

STEP 4: LEGAL CHALLENGES

The Dominican system pairs a demanding authorisation regime with an exceptionally broad constitutional remedy. Three tracks — the administrative route, enforcement and prosecution, and the amparo.

TRACK 1: THE ADMINISTRATIVE ROUTE (the front door)

- **Establish whether an authorisation exists.** Ask the Ministry in writing whether the project holds a **Permiso or Licencia Ambiental**, in what **category**, and on what date. Everything else follows from the answer.
- **Claim the study as a public document.** Law 64-00 states that the declaration, the study and the environmental report **shall be a public document, subject to discussion**. Cite that in your request; you are asserting a statutory entitlement, not requesting a favour.
- **Contest the category.** A project belongs in **Category A** — full **EIA, Licencia Ambiental** — where adverse impacts may arise **from its characteristics or from being located in or near environmentally sensitive areas**. Where a substantial or sensitively-sited project has been processed on a **DIA** in Category B, say so in writing with your evidence.
- **Use the consultation and the municipality.** The Ministry must coordinate with the corresponding institutions, which are **obliged to consult the study with the competent sectoral bodies and with the municipalities**. Where a **public consultation** occurs, results are **annexed to the technical review report** and participants' opinions are **considered** — so submit written opinions and keep proof. Press the **ayuntamiento** to respond formally.
- **Insist on real conditions.** Every authorisation must carry a **Programa de Manejo y Adecuación Ambiental**; press for specific, verifiable commitments, because that is what you will later enforce.

TRACK 2: ENFORCEMENT AND PROSECUTION

- **Works without authorisation.** Projects that **begin construction, installation or operation without the corresponding permit or licence** are sanctionable, **without prejudice to civil or criminal liability**. Report this to the Ministry immediately with dated photographs; it is the simplest and strongest complaint available.

- **Inspections and audits.** The Ministry conducts **periodic inspections and audits** of compliance. Where the management programme is unperformed, demand inspection in writing and record any failure to act — that record is the foundation of an amparo de cumplimiento.
- **The specialised environmental prosecutor.** A dedicated prosecutorial office exists for the defence of the environment and natural resources and can pursue offences under Law 64-00. Complaints are free. Be realistic about its **serious operational constraints**, but file: the record matters, and prosecution is a genuine deterrent.

TRACK 3: THE AMPARO (the decisive route)

- **Who may bring it, and against whom.** Any person, **or someone acting in their name**, may seek **immediate protection of fundamental rights** against violation or threat by the **action or omission of any public authority or private person**.
- **What it is for.** Expressly: **to make effective compliance with a law or an administrative act**, and **to guarantee collective and diffuse rights and interests**. Both limbs matter in environmental cases.
- **How it works.** The procedure is **preferential, summary, oral, public, free of charge and not subject to formalities** — so a short, clear filing with your evidence annexed is exactly right.
- **The rights to plead.** **Article 66**: collective and diffuse rights, including conservation of ecological balance, fauna and flora, and protection of the environment. **Article 67**: the State's duty to **prevent contamination and protect the environment for present and future generations**, and every person's right, **individually and collectively**, to sustainable use of natural resources and to a **healthy, ecologically balanced environment**. The Constitutional Court has affirmed protection **in the broadest terms**.
- **The amparo de cumplimiento — the under-used lever.** Where an authorisation, a management programme or the law itself is not being applied, you are not asking a court to second-guess technical judgement; you are asking it to **order the authorities to do what they are already legally bound to do** — the route run against the environment ministry over conditions inside a national park.
- **Ask for suspension**, and file promptly where harm is imminent or ongoing.
- **Constitutional revision.** Amparo judgments may be reviewed by the **Tribunal Constitucional**, which is where the broadest environmental reasoning has been developed.

The three legal challenge types

TYPE 1: THE ADMINISTRATIVE ROUTE (the front door)

Authorisation status, the public-document claim, the category challenge, consultation and the municipality, and conditions.

TYPE 2: ENFORCEMENT AND PROSECUTION

Unauthorised works, inspections and audits, and the specialised environmental prosecutor.

TYPE 3: THE AMPARO (the decisive route)

Free, informal protection of **collective and diffuse interests**, and the **amparo de cumplimiento** to compel enforcement — with suspension sought.

Legal Strategy Decision Tree

1. **Does an authorisation exist?** → Ask the Ministry in writing this week; if none and works have begun, report it immediately and file.
2. **Is the study withheld?** → Claim it as a **public document**, and if refused, file an amparo — it is free and it produces the file.
3. **Is the site in or near a sensitive or protected area but processed on a DIA?** → Challenge the **category**.
4. **Was there no real consultation, or were opinions never annexed and considered?** → Raise it administratively and plead it in the amparo.
5. **Is an authorisation in place but unenforced?** → **Amparo de cumplimiento** to compel the Ministry to apply its own decision.

Litigation Success Factors

A clear answer on authorisation status; the study in hand as a public document; the protected-area or sensitivity evidence that drives the category; a **signed technical opinion**; a claim framed around **collective and diffuse rights** and future generations rather than only private inconvenience; an express request for **suspension**; brevity, because the procedure is

summary and oral; and persistence into the enforcement phase.

What to Avoid: Legal Failures

Requesting the study as a favour rather than claiming it as a public document; failing to establish whether any authorisation exists; accepting a Category B classification on a sensitive site; pleading only individual harm when the Constitution protects collective interests; and treating the authorisation as the end when the management programme and the inspection duty remain enforceable.

TURNING YOUR EVIDENCE INTO ARGUMENTS

Evidence only counts when aimed at a specific ground. Here is how the records you gathered map onto the arguments that most often work.

Works begun without a permit or licence → sanction, suspension, civil and criminal liability (the cleanest ground). Feed it with: the Ministry's answer or silence, and dated photographs of the works.

A sensitively-sited project processed on a DIA → wrong category; full EIA and Licencia required. Feed it with: the protected-area boundary or sensitivity evidence and the project's real scale.

The study withheld → breach of the public-document rule. Feed it with: your written request citing the provision, and the refusal or silence.

No consultation, or opinions never annexed and considered → defective process. Feed it with: the absence of any record, and your submitted opinions with proof of filing.

The municipality never consulted → breach of the coordination requirement. Feed it with: the ayuntamiento's own confirmation.

Harm to a river, aquifer, coast or protected area → collective and diffuse rights; Articles 66 and 67. Feed it with: the technical opinion, the households and aqueducts affected, and the irreversibility.

Management programme unperformed and no inspection → amparo de cumplimiento. Feed it with: the programme's commitments, dated evidence of non-performance, and your unanswered demand for inspection.

The pattern: **lead with authorisation status and the legal character of the site**, plead the harm collectively, and use the enforcement limb when the decision exists but is ignored.

STEP 5: MEDIA STRATEGY

Media matters here because environmental disputes over mountains, rivers and coasts have repeatedly become national conversations, and because coverage reaches the technical allies and the municipal politicians who can act.

How Journalists Actually Work

Reporters need a hook, a human face, a conflict, and a document. Hand them the Ministry's answer showing **no authorisation** — or the refusal of a **public document** — the protected-area map, a named farmer whose water is at stake, and dated photographs. Make it easy, and never give a fact you cannot stand behind.

The Newsworthiness Formula

Local stakes + a credible threat + a documented legal defect + a David-and-Goliath frame + a strong image = coverage. Three angles reliably travel: **rivers and water supply, coast, mangrove and reef**, and **works inside or beside a protected area** — with a fourth, **a study the public was refused despite the law calling it public**.

Know the Outlets That Cover This Beat

Map the national dailies and television and their environment correspondents, digital outlets covering territorial disputes,

and provincial and community radio, which reaches affected municipios directly.

Building Reporter Relationships (The Key)

Give reporters accurate, sourced material and become their reliable contact. One trusted relationship beats a dozen releases. Offer a site visit and access to residents, and be scrupulously accurate — with significant investment behind a project, one unsupported claim dismisses the rest.

Why media matters even when it doesn't make the front page

Coverage reaches the university specialist whose signed opinion your free remedy needs, the councillors who can move the ayuntamiento, the organisations that will join the amparo, and the officials who decide whether to inspect. It also creates a dated record of what the community said and when.

Sample Media Timeline

Launch with the authorisation answer or the refusal of the study; refresh at each milestone — the category challenge, the consultation, the amparo and any suspension, the prosecutor's complaint, and any enforcement action.

Media Measurement

Track coverage, but measure what matters: whether the study is released, whether the Ministry answers on authorisation, whether inspection occurs, whether works stop, and whether the municipality takes a position.

EMAILS & LETTERS

Ready-to-adapt templates. Keep them factual, dated and sourced. File administrative documents through the entity's registry against a stamped copy. The **amparo is free, oral, summary and not subject to formalities** — so the template below is deliberately short, which is what the procedure rewards.

8A. Email to a reporter (story pitch)

Subject: [Municipio, Provincia]: clearing beside [protected area / river] — the Ministry has not confirmed any environmental authorisation

Estimada/o [name],

Since [date], clearing and earthworks have been under way at [location], [distance] from [the boundary of the ___ protected area / the ___ river], upstream of the aqueduct serving [number] families. We attach dated photographs from [dates].

On [date] we asked the Ministry of Environment whether the project holds a **Permiso** or **Licencia Ambiental**, in what category, and for a copy of the study — which Law 64-00 states **shall be a public document, subject to discussion**. [We have received no reply / the request was refused.] Copy attached.

[Where relevant: the site's proximity to a sensitive area suggests the project belongs in Category A with a full Environmental Impact Study, not the Declaration used.]

I can take you to the site and connect you with affected families. Could we speak this week?

[Name] · [Community organisation / aqueduct association] · [phone] · [email]

8B. Request for the authorisation status and the study

Asunto: Solicitud de información sobre autorización ambiental y copia del estudio — proyecto [nombre], [ubicación]

Señor Ministro de Medio Ambiente y Recursos Naturales:

Los suscritos, residentes de [comunidad], [municipio], solicitamos formalmente: 1. que se nos informe si el proyecto [nombre] en [ubicación] cuenta con **Permiso Ambiental o Licencia Ambiental**, en qué **categoría** fue clasificado y en qué fecha fue otorgada; 2. copia de la **Declaración de Impacto Ambiental o del Estudio de Impacto**

Ambiental correspondiente, así como del **Informe Técnico de Revisión** y de los resultados de la **consulta pública**, si la hubo; 3. copia del **Programa de Manejo y Adecuación Ambiental** y de los informes de inspección y auditoría realizados.

Fundamentamos esta solicitud en la Ley 64-00, que dispone que la declaración de impacto ambiental, el estudio de impacto ambiental y el informe ambiental **serán un documento público, sujeto a discusión**, y en el deber estatal de proteger el medio ambiente en provecho de las presentes y futuras generaciones (artículo 67 de la Constitución).

Agradecemos respuesta escrita en el plazo correspondiente.

[Nombres, cédulas, comunidad, fecha — conservar copia sellada]

8C. Acción de amparo — collective and diffuse rights

AL TRIBUNAL SUPERIOR ADMINISTRATIVO (o al tribunal competente en materia de amparo)

[Nombres y cédulas], residentes de [comunidad], [municipio], actuando en defensa de **derechos e intereses colectivos y difusos**, interponemos **ACCIÓN DE AMPARO** contra [el Ministerio de Medio Ambiente y Recursos Naturales / la empresa ____], y exponemos:

PRIMERO. Los hechos. Desde el [fecha] se ejecutan en [ubicación] obras de [descripción]. Se anexan fotografías fechadas desde puntos fijos.

SEGUNDO. El sitio. El área se ubica [dentro de / a ____ metros de] [el área protegida ____ / el río ____], del cual se abastecen [número] familias mediante [acueducto comunitario].

TERCERO. La autorización. Solicitamos al Ministerio, en fecha [fecha], información sobre la existencia de Permiso o Licencia Ambiental y copia del estudio. [No hemos recibido respuesta / se nos informó que no existe autorización / el proyecto fue tramitado mediante Declaración de Impacto Ambiental pese a su ubicación en o próxima a un área ambientalmente sensible.] La Ley 64-00 prohíbe ejecutar obras sin la autorización correspondiente.

CUARTO. El derecho. Los artículos 66 y 67 de la Constitución reconocen los **derechos colectivos y difusos**, imponen al Estado el deber de **prevenir la contaminación y proteger el medio ambiente en provecho de las presentes y futuras generaciones**, y reconocen a toda persona, individual y colectivamente, el derecho a **habitar en un ambiente sano y ecológicamente equilibrado**. El daño es **irreversible**: [pérdida de cobertura boscosa / afectación de la fuente de agua / intervención en área protegida].

PETITORIA. Solicitamos: (i) la **suspensión inmediata** de las obras como medida cautelar; (ii) que se acoja la acción; y (iii) que se ordene a [la autoridad] [abstenerse de otorgar autorización / dejar sin efecto la autorización otorgada / disponer la paralización y las sanciones que correspondan].

[Fecha, firmas, domicilio y correo para notificaciones]

8D. Complaint of works without authorisation

Asunto: Denuncia por ejecución de obras sin Permiso ni Licencia Ambiental — [ubicación]

Señor Ministro de Medio Ambiente y Recursos Naturales:

Denunciamos que en [ubicación], desde el [fecha], se ejecutan trabajos de [corte de árboles / movimiento de tierra / relleno / construcción] sin que conste autorización ambiental alguna, conforme a la respuesta [o falta de respuesta] a nuestra solicitud de [fecha].

La Ley 64-00 sanciona a los proyectos que inicien construcción, instalación u operación **sin contar con el Permiso o Licencia Ambiental correspondiente**, sin perjuicio de la responsabilidad civil o penal.

Solicitamos **inspección inmediata**, la **paralización** de los trabajos y la aplicación de las sanciones correspondientes, y que se nos informe de la actuación realizada. Se anexan fotografías fechadas y ubicación georreferenciada.

[Nombres, cédulas, fecha]

8E. Complaint to the specialised environmental prosecutor

Asunto: Denuncia por hechos que podrían constituir infracciones a la Ley 64-00 — [ubicación]

Señores de la Procuraduría especializada en defensa del medio ambiente y los recursos naturales:

Denunciamos los siguientes hechos ocurridos en [ubicación], [municipio], desde el [fecha]: [descripción: corte de árboles, extracción de agregados, vertidos, obras dentro o próximas a área protegida], ejecutados [sin autorización

ambiental / en incumplimiento de la autorización ____].

Anexamos fotografías fechadas, ubicación georreferenciada, y copia de nuestra denuncia ante el Ministerio de Medio Ambiente de fecha [fecha].

Solicitamos la investigación de los hechos y las medidas que correspondan.

[Nombres, cédulas, fecha, contacto]

8F. Challenge to the category

Asunto: Solicitud de reclasificación — proyecto [nombre] debe requerir Estudio de Impacto Ambiental y Licencia Ambiental

Señor Ministro:

El proyecto [nombre] en [ubicación] ha sido tramitado, según nos consta, mediante **Declaración de Impacto Ambiental** en categoría B. Solicitamos su reclasificación en **categoría A**, con **Estudio de Impacto Ambiental y Licencia Ambiental**, por lo siguiente: 1. **Ubicación.** El proyecto se localiza [dentro de / a ____ metros de] [el área protegida ____ / zona ambientalmente sensible], según cartografía anexa. 2. **Magnitud.** [Superficie, volumen, capacidad, plazos.] 3. **Recursos afectados.** [Fuente de agua que abastece a ____ familias; cobertura boscosa; línea de costa.] 4. **Efectos acumulativos.** [Otros proyectos en la misma cuenca o litoral.]

Solicitamos además que, mientras se resuelve, no se otorgue autorización alguna.

[Nombres, cédulas, fecha; conservar copia sellada]

8G. Press release (effective)

NOTA DE PRENSA — [fecha]

Comunidades de [municipio] acuden a los tribunales por obras junto a [río / área protegida]

Residentes de [comunidades], junto a [asociación de acueducto / organización], interpusieron una **acción de amparo** en defensa de **derechos colectivos y difusos** por las obras ejecutadas en [ubicación], [distancia] de [el área protegida / el río] que abastece a [número] familias.

«[Cita breve de una persona residente]», expresó [nombre]. Las comunidades solicitaron al Ministerio información sobre la existencia de autorización ambiental y copia del estudio —documento que la Ley 64-00 declara **público y sujeto a discusión**— [sin recibir respuesta / y se les informó que no existe autorización].

La acción solicita la **suspensión inmediata** de los trabajos. La Constitución obliga al Estado a proteger el medio ambiente en provecho de las presentes y futuras generaciones.

Contacto: [nombre, teléfono].

8H. Amparo de cumplimiento — compelling enforcement

AL TRIBUNAL COMPETENTE

[Nombres y cédulas], residentes de [comunidad], interponemos **ACCIÓN DE AMPARO** para hacer efectivo el **cumplimiento de la ley y del acto administrativo**, y exponemos:

PRIMERO. Mediante [resolución/licencia] núm. [número] de fecha [fecha], el Ministerio autorizó el proyecto [nombre], estableciendo un **Programa de Manejo y Adecuación Ambiental** que obliga a [enumerar compromisos].

SEGUNDO. Dichos compromisos **no se están ejecutando**, según consta en [fotografías fechadas, informes, testimonios anexos].

TERCERO. En fecha [fecha] solicitamos por escrito al Ministerio la realización de las **inspecciones y auditorías** previstas, sin que conste actuación alguna.

CUARTO. La Constitución habilita la acción de amparo **para hacer efectivo el cumplimiento de una ley o acto administrativo y para garantizar los derechos e intereses colectivos y difusos**.

PETITORIA. Solicitamos que se ordene al Ministerio [realizar la inspección, exigir el cumplimiento del Programa de Manejo y Adecuación Ambiental, y aplicar las medidas y sanciones que correspondan], fijando plazo para ello.

[Fecha, firmas, domicilio y correo para notificaciones]

Important Caveat

Templates are starting points. Adapt every one to your real facts and attach your evidence. Two things to remember: the **amparo is free, summary, oral and not subject to formalities**, so a short, clear filing with annexes works better than a long one; and the **study is a public document by statute**, so ask for it as a right and preserve any refusal. Keep stamped copies of administrative filings, always request **suspension** where works advance, and take advice on time limits before pursuing annulment in the administrative jurisdiction.

IF YOU HAVE LITTLE TIME OR FEW RESOURCES: THE RAPID-FIRE VERSION

The Dominican system rewards a few precise, cheap acts — and the decisive remedy costs nothing. In rough order of impact for the effort:

1. **Write to the Ministry and ask two questions:** does this project hold a **Permiso or Licencia Ambiental**, in what **category** and on what date; and please provide the **study**, which Law 64-00 declares a **public document, subject to discussion** (Section 8B). The answer — or the silence — defines your case.
2. **If works have begun without authorisation, report it immediately** (Section 8D). Beginning construction, installation or operation without the corresponding permit or licence is sanctionable and carries civil and criminal liability. This is the simplest strong ground there is.
3. **Photograph from fixed points, dated.** Same spot, same angle, repeated. Cheap and persuasive.
4. **Check the site's status.** Is it **inside or near a protected or environmentally sensitive area**? If so, and it was processed on a **DIA**, challenge the **category** (Section 8F) — it should be Category A with a full study.
5. **File the amparo** if the study is withheld, if there is no authorisation, or if harm is imminent (Section 8C). It is **free, oral, summary and not subject to formalities**, may be brought **for collective and diffuse interests**, and may be filed by someone acting on others' behalf. Ask for **suspension**.
6. **Complain to the specialised environmental prosecutor** (Section 8E) — free, and the record matters.
7. **Ask a university for a short signed technical opinion** — the one input a free remedy really needs.

If you do only the first two, you have established whether the project is lawfully authorised and, if it is not, put that on the record with the authority that must act. That is a real contribution, not a token one.

WHEN THE SYSTEM IS TILTED

The Dominican tilt is not in the rights, which are broad, nor in the remedy, which is free. It is in the institutions that are supposed to apply them.

What This Tilt DOES (and DOESN'T DO)

The tilt means studies are commissioned and paid for by promoters; the Ministry both promotes and regulates amid heavy investment demand; there is **no specialised environmental jurisdiction**, so cases go before ordinary and administrative courts; the **specialised environmental prosecutor** operates under serious resource constraints; and several protective laws — on water, on climate, and creating particular protected areas — have been repeatedly postponed. It does **not** close the doors: the **study is a public document by statute**; the Ministry must **consult sectoral bodies and municipalities**; **public consultation results are annexed and opinions considered**; **works without authorisation are sanctionable with civil and criminal liability**; every authorisation carries an enforceable **management programme**; and the **amparo** is free, informal, available for **collective and diffuse interests**, against public bodies **and private persons**, and usable **to compel compliance with a law or an administrative act**.

Reading Your Tilt: Responsive, Mixed, Entrenched

- **No authorisation, or a sensitively-sited project on the lighter instrument.** The strongest position: a clean legal fact, a free remedy, and a real prospect of suspension.
- **Mixed.** An authorisation exists but the consultation was thin, the municipality was never consulted, or the study is being withheld. Weight shifts to the public-document claim, the consultation record, the category, and the technical opinion.

- **Entrenched.** A full study, a genuine consultation, a licence, and works advanced — often a major tourism, mining or aggregates project. Assume annulment is unlikely; concentrate on the **management programme, inspections and enforcement**, which is exactly what the **amparo de cumplimiento** is for, and on the municipality for anything still unbuilt.

Documented Dominican Dynamics

The record shows expansive rights meeting strained institutions. **The constitutional protection is broad** — Article 66 recognises **collective and diffuse rights** including conservation of ecological balance and protection of the environment; Article 67 imposes on the State the duty to **prevent contamination and protect and maintain the environment in favour of present and future generations** and recognises everyone's right, **individually and collectively**, to a **healthy and ecologically balanced environment**; and the Constitutional Court has held the environment must be protected **in the broadest terms**. **The remedy matches the right** — the amparo is **preferential, summary, oral, public, free and not subject to formalities**, may be brought by a person **or someone acting in their name**, lies against **any public authority or private person** for action **or omission**, and exists both **to guarantee collective and diffuse interests** and **to make effective compliance with a law or administrative act**. **It has been used against the State itself** — the amparo route has run against the environment ministry over conditions inside a national park, decided in the administrative jurisdiction and then subject to constitutional revision. **But effectiveness lags** — Dominican commentary describes constitutional environmental protection as real yet "still under construction", calls for a **specialised environmental jurisdiction**, notes that the **environmental prosecutor** faces serious operational restrictions limiting its capacity, and records that laws creating particular protected areas remain pending. The through-line: **the law gives you the document and the door; the fight is about making institutions act**.

Assessment Framework — Determine Your Situation

Ask: does an authorisation exist, and in what category? Is the site inside or near a protected or sensitive area? Has the study been produced as the public document it is? Was the municipality consulted, and was there a real consultation? Have works begun without authorisation? Is a management programme in place and being executed, and has the Ministry inspected? Can we obtain a signed technical opinion? The answers tell you whether to file a straight amparo, a category challenge, an unauthorised-works complaint, or an amparo de cumplimiento.

Direct Action: Factual Information (Descriptive, Not Prescriptive)

Dominican communities use assemblies, marches, vigils, press conferences and sustained municipal campaigning, and large environmental mobilisations over mountains, rivers and coasts have shaped national debate. Keep actions peaceful and orderly and coordinate where notification or permission is required; avoid confrontation at works sites, which can bring arrests and shift attention from a strong legal case to a public-order argument. The strategic point is specific to this country: because the constitutional action is **free and informal**, public action is most valuable when it **supports a filed case** — publicising it, reaching technical allies, and pressing the ayuntamiento.

Honest Assessment

Tilted fights are harder, and the Dominican difficulty is enforcement rather than entitlement. But "harder" is not "hopeless": here a community can obtain the study as of right, demand an answer on authorisation, report unauthorised works to a prosecutor, and file a free constitutional action for the collective interest — and, where a decision already exists but is ignored, ask a court to order the State to apply it. Concentrate force where the tilt is weakest — **authorisation status, the public document, the site's protected status, and enforcement** — and keep going after the decision, because that is where these campaigns are usually won or lost.

WHEN IT'S ACTUAL CORRUPTION — AND WHO IS CAPTURED

Most bad decisions are lawful decisions you disagree with, or the product of institutions stretched thin. But capture is real. Read your situation actor by actor, and publish documents rather than accusations.

The study and its authors. Commissioned and paid for by the promoter, though prepared by registered and certified professionals. Signs: downstream users omitted, the protected area unmentioned, cumulative effects ignored, alternatives

absent. Lever: an independent signed opinion, and the fact that the study is a **public document** you can scrutinise.

The category decision. The cheapest way to reduce scrutiny is to classify a project into Category B and process it on a **DIA**. Signs: a substantial or sensitively-sited project on the lighter instrument. Lever: the written reclassification request with cartography.

Consultation and the municipality. The law requires the study to be consulted with sectoral bodies and **municipalities**, and public consultation results to be **annexed and considered**. Signs: no record of any consultation, an ayuntamiento that was never asked. Lever: ask the municipality directly, in writing, and put its answer on the record.

Enforcement after authorisation. The most consequential gap: management programmes unexecuted, inspections not carried out. Lever: the demand for inspection, and then the **amparo de cumplimiento**.

Works without authorisation. Where construction proceeds with no permit or licence at all, this is not a grey area — it is sanctionable and carries civil and criminal liability. Lever: the complaint to the Ministry and to the **environmental prosecutor**.

How to act on it, safely. Document from the Ministry's records, the gazette, protected-area instruments and the municipal file before you speak. Route genuine concerns to the **Ministry**, the **specialised environmental prosecutor**, the **Cámara de Cuentas** for public funds and the **Defensor del Pueblo** for administrative conduct — and above all into your **amparo**, where they are protected and consequential. Do not publish unproven accusations about named individuals: in a system where the key document is public by law, let the documents do the work.

INTEGRATION & TIMELINE

The five steps run in parallel and reinforce each other. In the Dominican Republic the timeline has a fast front end — a written request and, if needed, a free amparo within weeks — and a long tail, because the decisive struggle is usually about enforcement after a decision exists.

Realistic 12-Month Campaign Timeline

Weeks 1-4 (Establish the position). - Write to the Ministry: does the project hold a **Permiso or Licencia**, in what **category**, on what date — and provide the **study as a public document** (Section 8B). - Establish whether the site is **inside or near a protected or environmentally sensitive area**. - Begin **fixed-point photographs** of the river, forest, coast and works. - If works have begun with no authorisation, **report it immediately** to the Ministry and the **environmental prosecutor** (Sections 8D, 8E).

Weeks 4-10 (File early). - If the study is withheld or harm is imminent, file the **amparo** — free, informal, for **collective and diffuse interests** — with a request for **suspension** (Section 8C). - If the project sits on a **DIA** despite sensitive siting, file the **category challenge** (Section 8F). - Turn out for any **consulta pública**, submit written opinions and keep proof. - Ask the **ayuntamiento** in writing whether it was consulted on the study. - Approach a university for a **signed technical opinion**.

Months 3-6 (Build and press). - File the technical opinion with the Ministry and the court. - Broaden the coalition — downstream and coastal communities, aqueduct associations, the municipal council, universities, national organisations. - Sustain media around the authorisation question and the public-document refusal.

Months 6-12 (Decision and enforcement). - Follow the amparo to resolution; where suspension was granted, monitor and report breaches. - Where an authorisation stands, obtain the **Programa de Manejo y Adecuación Ambiental** and monitor every commitment; demand **inspections and audits** in writing. - Where commitments go unperformed and the Ministry does not act, file the **amparo de cumplimiento** to compel enforcement (Section 8H).

Beyond 12 months. - Keep the fixed-point record going; enforcement campaigns are measured in years. - Watch for **modifications, expansions and renewals**, each of which can reopen assessment. - Constitutional revision before the **Tribunal Constitucional** can follow an amparo judgment, and is where the broadest environmental reasoning develops.

Warning Signs — Act Early

Machinery or clearing with no visible signage or authorisation; survey stakes near a protected-area boundary; a project publicised as approved without any consultation the community heard of; a **DIA** for a substantial coastal or riverside project; water turning turbid; aggregate extraction beginning in a riverbed. Each is a trigger to **send the two-question**

letter that week — because once you know the authorisation position, you know your case.

Key Principles (What Separates Winning Campaigns from Losing Ones)

Winning campaigns: ask the authorisation question in writing immediately; claim the study as the **public document** the law says it is; check the site's **protected or sensitive status** and contest the category on it; report **unauthorised works** at once; plead **collective and diffuse rights** rather than only private harm; ask for **suspension**; and pursue enforcement after the decision through the **amparo de cumplimiento**. Losing campaigns: request the study as a favour; never establish whether authorisation exists; accept a Category B classification on a sensitive site; and treat the licence as the end of the matter.

FINAL ASSESSMENT

Real Outcomes: What Winning Looks Like

"Winning" in the Dominican Republic takes several forms, and it is worth naming them so you recognise a win when you get one: - the **study released** as the public document the law declares it to be; - a project **reclassified into Category A**, so a full **Estudio de Impacto Ambiental** and a **Licencia** are required; - **works suspended** — by court order, or by the Ministry where they began without authorisation; - an authorisation **refused, conditioned or annulled**; - a **consulta pública** genuinely held, with opinions annexed and considered; - **sanctions and prosecution** where a project operated without a permit or licence; - a **Programa de Manejo y Adecuación Ambiental** actually enforced, after a court ordered the authorities to apply their own decision; - and a community that now knows it can reach a court, for nothing, in defence of interests the Constitution calls collective.

Dominican communities and organisations have pursued and obtained these.

Decision Point: Continue, Modify, or Reassess

Reassess honestly at each milestone — remembering that the usual reason to stop, cost, does not apply to the amparo. If no authorisation exists, or the study is withheld, file: the ground is clean and the filing is free. If the project sits on a **DIA** near a sensitive area, the category challenge is worth everything you have, because it determines how much scrutiny follows. If a full study, a real consultation and a licence are all in place, the honest answer may be that the approval will stand — in which case shift decisively to the **management programme, inspections and the amparo de cumplimiento**, which is where Dominican campaigns most reliably produce lasting results. And if harm is imminent and irreversible, do not wait for perfect evidence: ask for suspension and build the record while the case runs.

The Bottom Line

The Dominican Republic pairs expansive environmental rights with institutions that struggle to deliver them: studies are promoter-funded, there is no specialised environmental jurisdiction, the specialised environmental prosecutor is under-resourced, and several protective laws remain pending. But the law hands communities two unusually powerful instruments. The first is documentary: **Law 64-00 declares the declaration, the study and the environmental report to be a public document, subject to discussion**, requires the Ministry to consult the study with **sectoral bodies and the municipalities**, provides that **public consultation results are annexed and participants' opinions considered**, attaches a **Programa de Manejo y Adecuación Ambiental** to every authorisation, and makes it sanctionable — with civil and criminal liability — to **begin works without a permit or licence**, while **Category A** and a full **EIA** are triggered not only by a project's characteristics but by its location **in or near environmentally sensitive areas**. The second is constitutional: **Articles 66 and 67** protect **collective and diffuse rights** and oblige the State to **prevent contamination and protect the environment for present and future generations**, and the **amparo** to enforce them is **preferential, summary, oral, public, free and not subject to formalities**, available to any person or someone acting in their name, against public authorities **and private persons, for collective and diffuse interests** and **to compel compliance with a law or an administrative act**. Communities that ask the authorisation question in writing in week one, claim the study as the public document it is, contest the category where the site is sensitive, report unauthorised works at once, plead the harm collectively, ask for suspension, and then keep going after the decision to force enforcement have obtained documents, suspensions, reclassifications and sanctions — without needing money to reach a court. No single step wins; the combination does. Start today by sending one letter with two questions: **is this project authorised, and where is the study?**